

Amendment No. 2 to SB0300

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 300*

House Bill No. 371

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 40-35-302, is amended by adding the following as a new subsection:

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(1) In addition to any other sentence authorized by this section, a person convicted of a Class A misdemeanor in general sessions court shall be required to complete a cognitive behavioral training course unless the court deems such a requirement to be inappropriate. If incarceration is part of the person's sentence, then the cognitive behavioral training course must be completed after the period of incarceration is completed.

(2) The offender must pay the cost of the course and, regardless of whether the defendant is indigent, the county is not required to pay the cost of the course.

(3) The offender must provide proof of course completion to the court or the court's designee within the time period specified by the court. An offender who willfully fails to complete the course or to provide proof of completion within the specified time period is in contempt of court and may be punished by confinement of up to ten (10) days.

(4) A cognitive behavioral training course used to fulfill the requirement in this subsection () must:

(A) Be available to be completed online via computer or mobile device;

(B) Be available in languages other than English;

(C) Cost the offender no more than one hundred dollars (\$100) and offer payment options; and

(D) Include required human interaction in the completion of the course, including, but not limited to, grading, feedback, or guidance.

(5) An entity providing a cognitive behavioral training course online must:

(A) Be a current provider of online cognitive behavioral services to a federal, state, or local entity, with documented or published results of effectiveness;

(B) Be available to provide telephone support for offenders at least five (5) days per week;

(C) Provide human facilitators responsible for grading course materials;

(D) Provide the offender with a certificate of completion within seventy-two (72) hours of finishing the course; and

(E) Provide all necessary informational or referral materials to counties at no cost to the county.

(6) A county or municipality may provide an in-person cognitive behavioral training program; provided, however, that if such a program is offered, the county or municipality must also offer an online cognitive behavioral training program that complies with the requirements of subdivisions () (4)–(5).

SECTION 2. This act takes effect on July 1, 2025, the public welfare requiring it, and applies to offenses committed on or after that date.